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Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N14
HON. JULIANNE SARTAIN BANCROFT

Date: Monday, May 18, 2026, 9:00 a.m.

- All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Check-in instructions and an instructional video are available on the court’s website. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the initial appearance. All hearings are open to the public. The courtroom doors are open.
- You must provide your own court reporter (unless you have a fee waiver and request one in advance).
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, then call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk. The court will hold a hearing. The court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
102	Cortes v. McFadden-Dale Industrial Hardware LLC 2024-01432648	MOTION TO BE RELIEVED AS COUNSEL OF RECORD - GRANTED Attorney Arlen Khachatourians, representing Plaintiff Javier Cortes, seeks an order relieving him from acting as counsel of record. Motions to be relieved as counsel pursuant to Code of Civil Procedure § 284(2) are governed by California Rules of Court, Rule 3.1362.

		All the requirements of California Rules of Court, Rule 3.1362 have been met, and the Declaration of Attorney Khachatourians demonstrates good cause for granting the motion based on the allegations that there has been an irremediable breakdown in the attorney-client relationship making it unreasonably difficult to represent client. Additionally, all required judicial counsel forms (MC-051, MC-052, and MC-053) relating to the notice of motion, declaration and proposed order have been utilized and properly served. [CRC 3.1362(a)-(d). ROAS 31, 32, 33.] Although the Attorney has been unable to confirm that the address of 1710 S. Lowell Street, Santa Ana CA 92707 is current, Attorney mailed the motion papers, return receipt requested, called the client's last known telephone number, conducted a search through "The Last One" and emailed the client at jaycortesab@gmail.com. It appears these addresses are sufficient, but Plaintiff is simply unresponsive. Therefore, the motion is GRANTED. Attorney Arlen Khachatourians shall be relieved as counsel of record upon filing the proof of service of the order. Moving party to give notice.
104	Dash v. Capistrano USD 2026-01538730	MOTION TO STRIKE (ANTI-SLAPP) - DENIED Defendant Capistrano Unified School District's ("CUSD") Special Motion to Strike (Anti-SLAPP) is DENIED. "Litigation of an anti-SLAPP motion involves a two-step process. First, the moving defendant bears the burden of establishing that the challenged allegations or claims arise from protected activity in which the defendant has engaged. Second, for each claim that does arise from protected activity, the plaintiff must show the claim has at least minimal merit. If the plaintiff cannot make this showing, the court will strike the claim." (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009 (Bonni) (internal citations omitted).)

		In determining whether the plaintiff's claims arise from protected activity, "courts are to consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability. The defendant's burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity." (Ibid. (internal citations omitted).) The anti-SLAPP statute identifies four categories of protected activity. (CCP § 425.16, subd. (e)(1)–(4).) CUSD invokes two of them. Section 425.16, subdivision (e)(2) protects "any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law." Subdivision (e)(4) covers "any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest." Plaintiffs' complaint asserts causes of action for: (1) Sex Discrimination in Violation of FEHA; (2) Retaliation in Violation of FEHA; (3) Failure to Prevent Discrimination, Retaliation, and Harassment in Violation of FEHA; (4) Whistleblower Retaliation in Violation of Cal. Labor Code 1102.5; (5) Wrongful Termination in Violation of Public Policy; (6) Breach of Implied-in-Fact Contract Not to Terminate Employment Without Cause; (7) Breach of Express Oral Contract Not to Terminate Employment Without Good Cause; (8) Negligent Hiring, Supervision and Retention of an Employee; and (9) Intentional Infliction of Emotional Distress. CUSD contends that all of Plaintiffs' causes of action are based upon CUSD's investigation of parent complaints about Plaintiffs' conduct and that public entity internal investigations are official proceedings authorized by law, subject to anti-SLAPP protection. (Mtn. at 10:17-19.) In opposition, Plaintiffs contend that the gravamen of their claims is CUSD's allegedly discriminatory decision to terminate
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		Plaintiffs’ employment—not the investigation. (Oppn. at 1:16-18.) Neither party appears to dispute that the investigation is protected conduct. “A claim arises from protected activity when that activity underlies or forms the basis for the claim.” (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062 (Park).) “A claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted. The mere fact that an action or claim was filed after protected activity took place does not mean the action or claim arose from that activity for the purposes of the anti-SLAPP statute.” (Verceles v. Los Angeles Unified School District (2021) 63 Cal.App.5th 776, 784 (citing Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 884 (Wilson); Park, at p. 1060).) Further, “[t]he ‘elements’ analysis as articulated by the Supreme Court in Park, supra, 2 Cal.5th at page 1063 . . . and adopted in Wilson, supra, 7 Cal.5th at page 884 . . . , does not mean any allegation of protected activity supporting an element of a cause of action subjects that cause of action to a challenge under section 425.16.” (Verceles, supra, at p. 786.) <u>First through Seventh Causes of Action</u> Here, Plaintiffs’ first through seventh causes of action for discrimination, retaliation and breach of contract arise from the alleged wrongful act of terminating Plaintiffs’ employment. (See Compl. ¶¶ 32, 41, 48, 58, 67, 73, 77.) For each of these claims, Plaintiffs allege that the wrongful act by CUSD was their termination—not the investigation of parents’ complaints. While the first cause of action for gender discrimination additionally alleges that Plaintiff Jenkins was subjected to “disparate discipline,” there are no factual allegations to suggest that the investigations were considered discipline. Rather, the factual allegations detail how, after the various investigatory meetings, Plaintiff Jenkins was informed that she did nothing wrong, was praised for
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		her performance, and that CUSD did not discipline Plaintiffs. (Compl. ¶¶ 16-17, 21, 24.) Thus, this claim is based exclusively on wrongful termination. Similarly, there are no factual allegations to support the allegation in the fourth cause of action for failure to prevent discrimination, retaliation and harassment in Violation of FEHA, that Plaintiffs were “targeted by gender-based complaints” attributed to CUSD. The only gender-based complaints alleged were those by parents. (See Compl. ¶¶ 14, 19, 23.) Thus, the fourth cause of action is also based exclusively on the wrongful termination of Plaintiffs. In <i>Wilson v. Cable News Network, Inc.</i>, the California Supreme Court addressed the “growing divide over whether, in an employment discrimination or retaliation case, the employer’s alleged motive to discriminate or retaliate eliminates any anti-SLAPP protection that might otherwise attach to the employer’s employment practices.” (<i>Wilson</i>, supra, 7 Cal.5th at 883.) The <i>Wilson</i> court concluded that “to carry its burden at the first step, the defendant in a discrimination [or retaliation] suit must show that the complained-of adverse action, in and of itself, is an act in furtherance of its speech or petitioning rights. Cases that fit that description are the exception, not the rule.” (<i>Id.</i> at 890.) Here, CUSD does not argue that the act of terminating Plaintiffs’ employment, in and of itself, constitutes protected activity. Instead, citing <i>Jeffra v. California State Lottery</i>, CUSD contends that the wrongful termination in this case is inextricably intertwined with the investigation, such that the claims arise from protected activity. (<i>Jeffra v. California State Lottery</i> (2019) 39 Cal.App.5th 471.) However, <i>Jeffra</i> is distinguishable because in that case, the employer’s investigation was the complained-of wrong. In <i>Jeffra</i>, the plaintiff alleged that his employer, the California State Lottery, “engaged in a pretextual investigation, ultimately forcing him to retire, after he filed a whistleblower complaint with the California State Auditor.” (<i>Id.</i> at 474.) Further, <i>Jeffra</i>’s analysis has been called into
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		question as inconsistent with the framework delineated by the California Supreme Court in <i>Park</i>. (See <i>Verceles</i>, supra, 63 Cal.App.5th at p.788.) In contrast to <i>Jeffra</i>, the complained of wrong in this case is the termination of Plaintiffs’ employment—not the fact that Defendant investigated Plaintiffs’ conduct. As the first through seventh causes of action do not arise from protected speech or conduct, the Court need not reach the second prong of the analysis as to those causes of action. Accordingly, the motion is DENIED as to the first through seventh causes of action. <u>Eighth Cause of Action for Negligent Hiring, Supervision or Retention of Employee</u> A school district may be held vicariously liable pursuant to Government Code section 815.2 for the negligence of supervisory or administrative personnel who allegedly knew, or should have known, of an employee’s propensities and nevertheless hired, retained and inadequately supervised him. (<i>C.A. v. William S. Hart Union High School Dist.</i> (2012) 53 Cal.4th 861, 865.) Plaintiffs’ eighth cause of action for negligent hiring, supervision or retention of employee alleges that CUSD knew or should have known that principal Brad Baker had become unfit to perform the work for which he was hired, and that his unfitness created a risk to female employees including Plaintiff Jenkins. (Compl. ¶¶ 80-82.) Specifically, “CUSD continued to appease the complaining parents and subject Plaintiffs to unjustified questioning and ultimately wrongful termination.” (Compl. ¶82.) Thus, this claim arises, in part, from the protected activity of the investigation. Plaintiffs contend they suffered economic loss and emotional distress as a result. (Compl. ¶ 85.) Analysis of an anti-SLAPP motion is not confined to evaluating whether an entire cause of action, as pleaded by the plaintiff, arises from protected activity or has merit. Instead, courts should analyze
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		each claim for relief — each act or set of acts supplying a basis for relief, of which there may be several in a single pleaded cause of action — to determine whether the acts are protected and, if so, whether the claim they give rise to has the requisite degree of merit to survive the motion. (Bonni, <i>supra</i>, 11 Cal.5th at p. 1010.) Insofar as Plaintiffs’ negligence claim is based on harm arising from being subjected to unjustified questioning, the burden shifts to Plaintiffs to show that the claim has at least minimal merit. “At this stage, the court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a <i>prima facie</i> factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff’s evidence as true, and evaluates the defendant’s showing only to determine if it defeats the plaintiff’s claim as a matter of law.” (Wilson <i>supra</i>, 7 Cal.5th at p. 891.) In this regard, Plaintiffs present their declarations, and contend that “CUSD knew, or at minimum should have known, of Principal Baker’s unfitness and nevertheless failed to take any meaningful action to prevent the discriminatory conduct that culminated in Plaintiffs’ wrongful termination. CUSD’s own investigations cleared both Plaintiffs of wrongdoing and affirmatively demonstrated its recognition that the complaints were unsupported and the parents were problematic. (Jenkins Decl. ¶¶ 11-25, Dash Decl. ¶ 6, 15-24.)” In reply, CUSD contends that Plaintiffs have presented no evidence that Principal Baker was unfit for his position. CUSD contends that Plaintiffs’ evidence shows that Principal Baker was not breaching his duty by investigating parent complaints about Plaintiffs—even if they turned out to be false—rather, he was fulfilling his duty as a principal. CUSD offers the declaration of Principal Baker in support of its argument.
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		Plaintiffs have made a prima facie factual showing as to this cause of action, which is not negated as a matter of law by CUSD’s showing. Accordingly, the motion is DENIED as to the eighth cause of action. <u>Ninth Cause of Action for Intentional Infliction of Emotional Distress</u> In their ninth cause of action for intentional infliction of emotional distress, Plaintiffs allege that CUSD engaged in intentional and outrageous conduct toward Plaintiffs because CUSD “repeatedly legitimized and acted upon discriminatory parent complaints despite having acknowledged that those complaints were unwarranted and that Plaintiffs’ performance was satisfactory. By giving credence to these unsupported complaints, [CUSD] forced Plaintiffs to repeatedly defend Plaintiff Jenkins’ involvement with the boys’ wrestling team against bigoted, gender-based animus rather than any objective, performance-based criteria.” (Compl. ¶87.) Plaintiffs further allege that CUSD intended to cause Plaintiffs’ emotional distress by and through their outrageous conduct, and that Plaintiffs suffered severe emotional distress as a result. (Compl. ¶¶ 88-89.) This claim arises from CUSD’s investigations. Intentional infliction of emotional distress requires (1) “outrageous” conduct by the defendant, (2) that the defendant intend to cause (or recklessly disregard the probability of causing) emotional distress, (3) severe emotional distress and (4) causation. (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1225–1226.) Plaintiffs have made a minimal showing of merit by presenting evidence in their declarations that they were repeatedly brought into meetings to be questioned over the same parent complaints, even though CUSD repeatedly found the complaints without merit. At the same time, Plaintiffs’ complaints to CUSD, that the parents’ complaints were driven by discriminatory animus, were ignored,
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		causing Plaintiffs severe emotional distress. (Dash Decl. ¶¶ 4-6; 14-24; Jenkins Decl. ¶¶ 11-2.) CUSD contends that, as a government actor, it is immune from liability for intentional torts. In opposition, Plaintiffs correctly contend that, pursuant to Government Code §815.2, a public entity may be liable for the torts of its employees committed within the scope of their employment, as long as the employees themselves are not immune. (See <i>Lawson v. Superior Court</i> (2010) 180 Cal.App.4th 1372, 1385.) CUSD also contends that the conduct alleged is not sufficiently extreme and outrageous to support the claim. “Outrageous” conduct is that which is so extreme that it exceeds all bounds usually tolerated in a civilized society. (<i>Angie M.</i>, supra, 37 Cal.App.4th at p. 1226.) If Plaintiffs’ allegations are proven, reasonable minds could differ as to whether repeated formal interrogations of Plaintiffs regarding concededly meritless complaints—in a context where Plaintiffs feared for their employment—constitutes outrageous conduct. Accordingly, the motion is DENIED as to the ninth cause of action. Defendant to give notice.
107	Favero v. California Friends Homes 2025-01520569	MOTION TO COMPEL ARBITRATION - GRANTED Defendant, California Friends Homes dba Rowntree Gardens (“Rowntree Gardens”), moves for an order staying the present action and compelling contractual binding arbitration pursuant to an Arbitration Agreement. This case was filed by Plaintiff against Rowntree Gardens asserting claims for: (1) statutory elder abuse/dependent adult/neglect in violation of Welfare & Institutions Code §§ 15600 et seq, (2) negligence, and (3) violation of Patient’s Bill of Rights/Health & Safety Code § 1430. Rowntree Gardens contends that this action against Rowntree Gardens should be stayed and compelled to arbitration under the Federal Arbitration Act (“FAA”), 9 U.S.C. §§ 2-4,

		pursuant to an Arbitration Agreement executed by Plaintiff, Emilio Favero (“Plaintiff”); that the Arbitration Agreement is governed by the FAA as expressly stated therein; and that the Arbitration Agreement provides for arbitration of Plaintiff’s claims here as the Arbitration Agreement includes all claims and disputes, other than those specifically excluded by the agreement, arising from or related to the Admission Agreement or to the Resident’s residency, care or services provided at the Facility. Rowntree Gardens also contends that the Arbitration Agreement involves interstate commerce, placing it squarely within the FAA; that the Arbitration Agreement is valid and enforceable as Plaintiff had the capacity to enter into the agreement, and did not rescind the agreement, and that Plaintiff was not required to sign the Arbitration Agreement as a precondition to his admission at Rowntree Gardens. Rowntree Gardens further contends that the instant motion does not violate Plaintiff’s right to a trial by jury; that Plaintiff has the burden to defeat the Arbitration Agreement by a preponderance of the evidence; that Rowntree Gardens has not delayed in invoking the right to arbitrate; and that Plaintiff refused to stipulate to arbitration. <u>Refusal to Arbitrate</u> A petition to compel arbitration may be brought under Code of Civil Procedure section 1281.2. (Spear v. Calif. State Auto Assn. (1992) 2 Cal.4th 1035, 1041 (“Spear”).) Under Code of Civil Procedure section 1281.2, the court may order a petitioner and respondent to arbitrate a controversy if the court determines that an agreement to arbitrate the controversy exists and “[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy.” (Code Civ. Proc. § 1281.2.) Here, Plaintiff refused to stipulate to arbitration. (Declaration of Krista M. Schlueck (“Schlueck Decl.”), ¶¶ 6-7, Exs. C and D.) <u>Existence of Agreement to Arbitrate</u>
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		“Under ‘both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate.’ [Citation].” (Cruise v. Kroger Co. (2015) 233 Cal.App.4th 390, 396, emphasis in original.) The court is to determine whether a valid arbitration agreement exists, and if so, whether the agreement encompasses the dispute at issue. (Omar v. Ralphs Grocery Co. (2004) 118 Cal.App.4th 955, 960-961, citing Howsam v. Dean Witter Reynolds, Inc. (2002) 537 U.S. 79, 84; Lifescan, Inc. v. Premier Diabetic Servs., Inc. (9th Cir. 2004) 363 F.3d 1010, 1012.) In determining the validity or “the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration. [Citations.]” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236; Circuit City Stores, Inc. v. Najd (9th Cir. 2002) 294 F.3d 1104, 1108.) General principles of contract law apply to determine whether the parties have entered into a binding agreement. (Ibid.) Generally, an arbitration agreement must be in writing, and a party’s acceptance of an agreement to arbitrate may be express or implied in fact. (Ibid.) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (Ibid.) Here, Rowntree Gardens has met its burden to show the existence of an arbitration agreement by submitting a copy of the Arbitration Agreement that was executed by Plaintiff and Jennifer Nguyen on behalf of Rowntree Gardens on May 25, 2025. (Declaration of Jennifer Nguyen (“Nguyen Decl.”), ¶¶ 10-12, Ex. A.) All claims asserted by Plaintiff arise out of the care and services provided by Rowntree Gardens to Plaintiff while Plaintiff was admitted and was a resident of Rowntree Gardens in May 2025 following back surgery. (Complaint, ¶¶ 9-14, 17-18.) Rowntree Gardens has shown the existence of a valid
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		Arbitration Agreement that encompasses the claims in this action. Plaintiff does not dispute the validity or enforceability of the Arbitration Agreement. <u>Applicability of the Federal Arbitration Act</u> Rowntree Gardens asserts that the FAA applies and governs the Arbitration Agreement as expressly provided therein. In opposition, Plaintiff contends that the FAA’s procedural rules do not apply in this case and California procedural law governs, such that Code of Civil Procedure section 1281.2(c) applies and warrants denial of arbitration due to the presence of third parties and the risk of conflicting rulings. Plaintiff also contends that application of Section 1281.2(c) is not preempted by the FAA. The party asserting the FAA applies must show it applies by presenting evidence establishing the contract with the arbitration provision has a substantial relationship to interstate commerce, and the failure to do so renders the FAA inapplicable. (Carbajal v. CWPSC, Inc. (2016) 245 Cal.App.4th 227, 234.) “[T]he United States Supreme Court has identified ‘three categories of activity that Congress may regulate under the commerce power: (1) the channels of interstate commerce, (2) the instrumentalities of interstate commerce and persons or things in interstate commerce, and (3) those activities having a substantial relation to interstate commerce.’ [Citations.]” (Ibid.) “[A]rbitration-related proceedings in California courts are governed by the CAA’s procedural rules unless their application is preempted or the parties have expressly agreed that the FAA’s procedural rules apply.” (Quach v. California Commerce Club, Inc. (2024) 16 Cal.5th 562, 576.) Parties to an arbitration agreement may also expressly designate that any arbitration proceeding should move forward under the FAA’s procedural provisions rather than under state procedural law. (Cronus Investments, Inc. v. Concierge Services (2005) 35 Cal.4th 376, 394.) “[W]hen an agreement provides that its ‘enforcement’ shall be governed by
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		the FAA, the FAA governs a party’s motion to compel arbitration.” (See <i>Victrola 89, LLC v. Jamanm Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 346 (“<i>Victrola</i>”).) By stating that “enforcement of this agreement to arbitrate shall be governed by the Federal Arbitration Act” in the arbitration provision, “the parties intended to incorporate the FAA with respect to compelling arbitration.” (Ibid.) Thus, even if a transaction does not involve interstate commerce, “the parties may [] voluntarily elect to have the FAA govern enforcement of the [a]greement.” (Id. at 355 [“the presence of interstate commerce is not the only manner under which the FAA may apply.”]; see also <i>Barrera v. Apple American Group LLC</i> (2023) 95 Cal.App.5th 63, 76 [“since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement.”].) “Absent such an express designation, however, the FAA’s procedural provisions do not apply in state court.” (<i>Valencia v. Smyth</i> (2010) 185 Cal.App.4th 153, 174.) Here, Article 3 of the instant Arbitration Agreement states: This Agreement shall be enforced and all arbitrations shall be conducted in accordance with the Federal Arbitration Act. If the Federal Arbitration Act does not permit arbitration in accordance with this Agreement, then the matter shall be arbitrated in accordance with state law. (Ex. A to Nguyen Decl., Arbitration Agreement, Article 3, emphasis added.) The plain language of the Arbitration Agreement therefore expressly provides that the agreement itself shall be enforced in accordance with FAA. In turn, it expressly provides that the FAA’s procedural provisions (9 U.S.C. §§ 3, 4, 10, 11) apply. (<i>Valencia v. Smyth</i> (2010) 185 Cal.App.4th 153, 173-174.) Article 1 provides that any dispute as to medical malpractice “will be determined by submission to neutral, binding arbitration as provided by California law, and not by a lawsuit or resort to court process, except as California law provides for judicial review
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		of arbitration proceedings.” Article 4 also provides, in relevant part, that “[t]he merits of any claim or dispute will be determined in accordance with the laws of California.” (Ex. A to Nguyen Decl., Arbitration Agreement, Article 4.) These provisions do not override the provision directing that the enforcement of the Arbitration Agreement shall be in accordance with the FAA. (See <i>Victrola</i> 89, <i>supra</i>, 46 Cal.App.5th at p. 349 [finding that arbitration agreement providing for disputes to be “decided by neutral arbitration as provided by California law” and informing a party that it “may be compelled to arbitrate under the authority of the California Code of Civil Procedure” have been held to mean that enforcement of the agreement shall be decided under California law, but only in the absence of an express provision that the enforcement of the agreement to arbitrate shall be governed by the FAA]; <i>Gravillis v. Coldwell Banker Residential Brokerage Co.</i> (2006) 143 Cal.App.4th 761, 784, fn. 4 [“The language in the Agreement that the ‘arbitration shall be conducted in accordance with [the CAA]’ (italics added) does not indicate, by itself, that the arbitration provision should be governed by California law”].) Plaintiff contends that the language in the Arbitration Agreement here is like that in <i>Wright v. Wellquest Elk Grove, LLC</i> (2026) 119 Cal.App.5th 267 where the Court of Appeal found that the parties did not expressly incorporate the FAA’s procedural provisions into the agreement such that the procedural provisions of the California Arbitration Act (“CAA”) applied. (<i>Wright v. Wellquest Elk Grove, LLC</i> (2026) 119 Cal.App.5th 267, 279 (“Wright”).) In <i>Wright</i>, the provision stated that “‘ . . . any and all claims or disputes arising from or related to this Agreement or to your rights, obligations, care, or services at WellQuest of Elk Grove shall be resolved by submission to neutral, binding arbitration in accordance with the Federal Arbitration Act” (Id. at p. 272.) The Court of Appeal explained that the arbitration agreement provided that “[t]he parties agreed to engage in arbitration ‘in accordance with’ the FAA, which means ‘in a way that agrees with or follows’ the FAA,” and concluded that this
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		meant that “any arbitration must be consistent with the FAA” but that the agreement did not specify whether this intent applied to substantive, procedural, or both types of the FAA’s provisions, which was fatal to the claim that the procedural provisions of the FAA applied. (Id. at pp. 280.) Unlike the provision in Wright, however, the subject Arbitration Agreement explicitly states that the Arbitration Agreement shall be enforced in accordance with the FAA such that it specifies that the procedural provisions of the FAA applies to the instant petition to compel arbitration. In turn, Code of Civil Procedure section 1281.2(c) does not apply. “The procedural provisions of the FAA ‘do[] not include a provision comparable to ... section 1281.2[, subdivision](c) and therefore requires courts to enforce written arbitration agreements even if there is pending litigation involving a third party that may result in conflicting rulings.’ (Acquire II, Ltd. v. Colton Real Estate Group, supra, 213 Cal.App.4th at p. 968, 153 Cal.Rptr.3d 135.) Under the FAA, ‘the court’s only option in these circumstances is to stay the court proceeding and compel the arbitration.’ (Rodriguez v. American Technologies, Inc. (2006) 136 Cal.App.4th 1110, 1115, 39 Cal.Rptr.3d 437 (Rodriguez).)” (Wright, supra, 119 Cal.App.5th at p. 279.) If the FAA applies, then Code of Civil Procedure section 1281.2(c) cannot be applied to deny enforcement of the arbitration clause. (Gloster v. Sonic Automotive, Inc. (2014) 226 Cal.App.4th 438, 446 [“Because the Federal Arbitration Act (9 U.S.C. § 1 et seq; FAA) contains no provision analogous to section 1281.2, subdivision (c), that subdivision cannot be applied to deny the enforcement of the arbitration clauses governed by the FAA. [Citation.]”.) Code of Civil Procedure section 1281.2(c) is a procedural provision under the CAA that may be enforced by California courts even with respect to arbitration contracts subject to the FAA’s substantive rules. (Nixon v. AmeriHome Mortgage Co., LLC (2021) 67 Cal.App.5th 934, 945.) Under the FAA, “if a dispute presents multiple claims, some arbitrable and some not, the former must be sent to arbitration even if this will lead to
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		piecemeal litigation.” (KPMG LLP v. Cocchi (2011) 565 U.S. 18, 19.) “From this it follows that state and federal courts must examine with care the complaints seeking to invoke their jurisdiction in order to separate arbitrable from nonarbitrable claims. A court may not issue a blanket refusal to compel arbitration merely on the grounds that some of the claims could be resolved by the court without arbitration. [Citation.]” (Ibid.) In this case, as enforcement of the Arbitration Agreement is governed by the FAA, the procedural provisions of the FAA apply to the instant petition to compel arbitration, the procedural provision in Code of Civil Procedure section 1281.2(c) under the CAA does not apply to deny enforcement of the agreement to arbitrate, and the Court must enforce the Arbitration Agreement even if there is a pending litigation involving a third party, i.e., Park Regency that might result in conflicting rulings. Therefore, Rowntree Gardens’ petition to compel arbitration is GRANTED. The action is STAYED as to Rowntree Gardens pending completion of arbitration. “If any suit or proceeding be brought in any of the courts of the United States upon any issue referable to arbitration under an agreement in writing for such arbitration, the court in which such suit is pending, upon being satisfied that the issue involved in such suit or proceeding is referable to arbitration under such an agreement, shall on application of one of the parties stay the trial of the action until such arbitration has been had in accordance with the terms of the agreement, providing the application for the stay is not in default in proceeding with such arbitration.” (9 U.S.C. § 3.) As the Court has ruled on the Rowntree Gardens’ petition for arbitration, the request that the action and all discovery be stayed pending determination of the instant motion is moot. Rowntree Gardens to give notice.
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110	Nassiri v. Nassiri 2025-01535120	MOTION TO STRIKE (ANTI-SLAPP) - GRANTED Plaintiff Damian Nassiri sued Defendant Rattanaorn “Joy” Nassiri for (1) intentional infliction of emotional distress, (2) Fraud and (3) Negligence. Plaintiff and Defendant are currently in marital dissolution proceedings. In this civil action, Plaintiff alleges Defendant deceitfully filed for divorce and sought a restraining order against him. Defendant has moved to strike the complaint under Code of Civil Procedure section 425.16. To invoke the protection of the anti-SLAPP statute defendant must show that plaintiff's lawsuit “arises from” defendant's exercise of free speech or petition rights as defined in CCP § 425.16(e). (Equilon Enterprises, LLC v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 61.) Defendant argues that Plaintiff's claims arise entirely from Defendant's protected petitioning activity, including: 1. Seeking a TRO and a DVRO; 2. Filing a petition for divorce; 3. Communicating with law enforcement regarding domestic violence and child safety; and 4. Changing the locks of the family home pursuant to the TRO. Courts consistently hold that seeking restraining orders, filing divorce actions, communicating with law enforcement, and enforcing court orders constitute protected petitioning activity. (Navellier v. Sletten (2002) 29 Cal.4th 82, 90.) Statements and writings made during judicial proceedings are protected by the anti-SLAPP statute. Filing a lawsuit is an exercise of a party's constitutional right to petition for grievances. A claim for relief filed in court is “indisputably a statement or writing made before a judicial proceeding.” (Navellier v. Sletten (2002) 29 Cal.4th 82, 90; Briggs v. Eden Council for Hope & Opportunity (1999) 19 Cal.4th 1106, 1115.) A statement or writing is “in connection with” litigation if it “relates to the substantive issues in the litigation and is directed to persons having some interest in the litigation.” (Neville v. Chudacoff
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		(2008) 160 Cal.App.4th 1255, 1266; Seltzer v. Barnes (2010) 182 Cal.App.4th 953, 962.) Here, each cause of action arises from the fact that Defendant called the police on Plaintiff, had him arrested, sought a TRO, and filed for divorce. See Complaint ¶¶5, 7, 8, 17, 21, 22, 30. While Plaintiff also pleads facts relating to Defendant’s text messages, it is clear that, but for, the filing for a restraining order and divorce, there would be no case here. The fact that Plaintiff’s Complaint is full of vitriolic language towards Defendant and was filed just days after defendant filed for divorce and a TRO appears to suggest that plaintiff filed this action to chill the valid exercise of Defendant’s constitutional rights of freedom of speech and petition. (See Complaint, and Decl. of Rattanaorn ¶¶2, 5, 11, 12.) The court finds that Defendant has sustained her burden on the first prong of the anti-SLAPP test to demonstrate the lawsuit arises from protected activity. The burden thus shifts to Plaintiff to establish under the second prong a “probability” that plaintiff will prevail on his claims. (CCP § 425.16(b).) Plaintiff did not file a declaration or any evidence in support of the opposition to the motion to strike. The declaration and text messages attached to the complaint do not sustain the burden of establishing a probability of prevailing on any of the causes of action. Although Plaintiff filed a First Amended Complaint on 4/23/2026, this does not affect this court’s authority to grant this motion. (See Salma v. Capon (2008) 161 Cal.App.4th 1275, 1280; Dickinson v. Cosby (2017) 17 Cal.App.5th 655, 677–678; Sylmar Air Conditioning v. Pueblo Contracting Services, Inc. (2004) 122 Cal.App.4th 1049.) The motion to strike the complaint is GRANTED. Any entitlement to fees and costs should be made by separate motion. (Code Civ. Proc., §425.16(c)(1).) Court clerk to give notice.
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111	Premier Liberty Development, LLC v Nguyen 2018-01008782	DEMURRER TO AMENDED COMPLAINT – NO TENTATIVE RULING Plaintiff Premier Liberty Development (Premier) filed a first amended supplemental complaint asserting a single cause of action for declaratory relief. (ROA 633) Velocity demurred to Plaintiff’s complaint on the grounds that it fails to state facts sufficient to constitute a cause of action because the claim is insufficiently pled. See, Code Civ. Proc. §§ 430.10(e) and 430.50(a). Premier’s request for judicial notice is GRANTED. The court will take judicial notice of exhibits 1 through 10 to the Stein Declaration. “A general demurrer is usually not an appropriate method for testing the merits of a declaratory relief action, because the plaintiff is entitled to a declaration of rights even if it is adverse to the plaintiff’s interest.” (Qualified Patients Assn. v. City of Anaheim (2010) 187 Cal.App.4th 734, 751.) <u>THE PARTIES SHALL BE PREPARED TO ADDRESS THE FOLLOWING QUESTIONS AT THE HEARING ON THE DEMURRER:</u> If the court were to grant the requested declaratory relief, what (if any) would be the impact on title to the property vis-à-vis the current owner? Would the current owner’s right to title be affected? If so, how? If not, why not? What is Velocity’s current interest in the property? What is Premier’s current interest in the property? What was the basis of the restitution order from Premier to Velocity? Could the arguments raised in this demurrer have been raised in Velocity’s previous demurrer? How and why or why not? If the arguments raised in this demurrer could have been raised in Velocity’s previous demurrer, may the court consider them now?
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112	Providence Capital Funding Inc v. Montejano 2024-01384853	MOTION FOR ATTORNEY FEES - GRANTED Plaintiff, Providence Capital Funding, Inc. (“Plaintiff” or “Providence”), moves for an order granting attorneys’ fees in the total amount of \$22,758.90, following entry of Judgment against Defendants Jesus Espinoza Montejano (“J. Espinoza”) , Leticia Espinoza (“L. Espinoza”), and Avina Produce, Inc. (“Avina”) (collectively, “Defendants”) on Plaintiff’s Complaint. The requested attorneys’ fees in the amount of \$22,758.90, consists of \$21,771.40 plus an additional \$987.50 in attorneys’ fees incurring in preparing the instant motion. No opposition has been filed. <u>Entitlement to Attorney’s Fees</u> “[E]ach party to a lawsuit is responsible for his or her own attorney’s fees in the absence of an agreement between the parties for fees or a statute specifically authorizing fees. [Citations.]” (Pederson v. Kennedy (1982) 128 Cal.App.3d 976, 979.) Under Code of Civil Procedure section 1032, attorney’s fees are recoverable as costs when authorized by contract, statute or law. (Code Civ. Proc. § 1033.5(a)(10)(A)-(C).) Civil Code section 1717, subdivision (a) provides, in part: “In any action on a contract, where the contract specifically provides that attorney’s fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney’s fees in addition to other costs.” Civil Code section 1717(b)(1) states: “The court, upon notice and motion by a party, shall determine who is the party prevailing on the contract for purposes of this section, whether or not the suit proceeds to final judgment. Except as provided in paragraph (2), the party prevailing on the contract shall be the party who recovered a greater relief in the action on the
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		contract. The court may also determine that there is no party prevailing on the contract for purposes of this section.” (Civil Code § 1717(b)(1), emphasis added.) “ ‘To determine whether an action is on the contract, we look to the complaint and focus on the basis of the cause of action [Citations.] Any action that is based on a contract is an action on that contract regardless of the relief sought.’ [Citations.]” (Yoon v. Cam IX Trust (2021) 60 Cal.App.5th 388, 392-393.) “California courts liberally construe the term ‘on the contract’ in Civil Code section 1717. [Citation.]” (Id. at p. 393.) “Where an attorney fee clause provides for an award of fees incurred in enforcing a contract, ‘[i]t is settled that it is irrelevant if the fees were incurred offensively or defensively.’ [Citation.]” (Ibid.) Here, Plaintiff filed suit against J. Espinoza for breach of a written Lease agreement for the lease of certain equipment (“Lease”), and against L. Espinoza and Avina for breach of their guaranties of J. Espinoza’s obligations under the Lease. (Decl. of Adeline Tungate (“Tungate Decl.”), ¶¶ 5-10.) The Court granted Plaintiff’s motion for summary adjudication on the causes of action for breach of the lease, recovery of personal property, and breach of guaranty, and entered judgment against all defendants in the amount of \$200,479.23. (Id., ¶¶ 12-13, Ex. 4.) The Lease signed by J. Espinoza contains a fee provision which states, in relevant part: “You agree to reimburse us for all charges, costs, expenses and attorney’s fees that we have to pay to enforce this Lease or collect the Obligations under this Lease and in any lawsuit or other legal proceedings which we are required to bring or defend because of your default. You also agree that in the event of a dispute related to or arising out of this Lease, the Lessor [Providence] in such dispute shall be entitled to recover its reasonable attorney’s fees and costs.” (Tungate Decl., ¶ 6, Ex. 1, Lease § 13.) The Guaranty signed by L. Espinoza states, “[i]f it is necessary for us to proceed legally to enforce this Guaranty, Guarantor ... agrees to pay all costs,
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		including attorney’s fees incurred in enforcement of this Guaranty.” (Tungate Decl., ¶ 8, Ex. 2, last paragraph.) The Guaranty signed by Avina states “[Avina] agrees to pay all costs, expenses and attorneys’ fees paid or incurred by Lessor [Providence] in endeavoring to enforce the Lease and this Guaranty.” (Tungate Decl., ¶ 9, Ex. 3, Guaranty, § 7.) Based on the foregoing, Plaintiff’s action was on a contract, i.e., Lease and Guaranties, the fees were incurred to enforce these contracts, and judgment was entered in favor of Plaintiff such that Plaintiff is the prevailing party and is entitled to attorney’s fees under the provisions of the Lease and the Guaranties. <u>Reasonableness of Hours Expended</u> A court has wide discretion in determining what constitutes reasonable attorney fees. The court typically makes this determination based upon declarations without live testimony. The value of legal services performed in a case is a matter in which the court has its own expertise, and thus may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096; Padilla v. McClellan (2001) 93 Cal.App.4th 1100, 1107; Syers Properties III, Inc. v. Rankin (2014) 226 Cal.App.4th 691, 698 [“experienced trial judge is the best judge of the value of professional services rendered in his court”].) The determination ordinarily begins with ascertainment of the “lodestar,” i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (EnPalm, LLC v. Teitler Family Trust (2008) 162 Cal.App.4th 770, 774; see Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 271-282 [discussing general principles governing attorney fee awards].) The reasonable hourly rate is that prevailing in the community for similar work; but the court may use out-of-area rates when the prevailing party shows it
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		was impracticable to use local counsel. (In re Tobacco Cases I (2013) 216 Cal.App.4th 570, 582.) “ ‘[T]he [party] . . . seeking fees and costs “ ‘bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.’ [Citation.]” ’ (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1320.) Here, the motion is supported by the Declaration of Adeline Tungate which attaches the billing invoices for this matter as Exhibit 6. Plaintiff’s counsel provides that Providence has incurred fees for the services of Buchalter from March 2024 through October 2025 in the sum of \$21,771.40. (Tungate Decl., ¶¶ 14, 16.) Although Plaintiff’s counsel does not set forth the number of hours expended for the two timekeepers for which it seeks fees (Tungate Decl., ¶ 14, Ex. 6.), the Court’s review of the billing invoices indicates that Mark M. Scott expended 12.2 total hours, that Attorney Tungate expended 37.8 total hours, and that Patrick Smith expended 0.2 hours. (Ex. 6 to Tungate Decl.) Attorney Tungate declares that the fees were reasonably and necessarily incurred in connection with the prosecution of Providence’s rights arising out of the contracts which are the subject of this action. (Tungate Decl., ¶¶ 4, 14.) The Court finds the hours expended in this case by Attorneys Mark M. Scott and Tungate from its commencement through a motion for summary adjudication, including discovery related tasks, to be reasonably expended. However, no explanation is provided as to the time expended by Patrick Smith. Therefore, the Court deducts 0.2 hours billed by Patrick Smith totaling \$14.40. <u>Reasonableness of Hourly Rate</u> In determining a reasonable rate for the attorney's services, courts usually consider: (1) the prevailing rate charged by attorneys of similar skill and experience for comparable legal services in the community; (2) the nature of the work performed;
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		and (3) the attorney's customary billing rates. (See <i>Serrano v. Unruh</i> (1982) 32 Cal.3d 621, 643.) “In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41.) Plaintiff seeks fees for two attorneys, Mark M. Scott and Adeline Tungate at hourly rates of \$645 per hour and \$345-395 per hour, respectively. To support these rates, Plaintiff’s counsel provides that Mark M. Scott is a shareholder with the Buchalter law firm; a Professional Corporation; that from the inception of this case to the present, the standard hourly rate charged by Buchalter for Mark M. Scott’s services on this matter was \$645.00; that from the inception of this case to the present, the standard hourly rate charged by Buchalter for Attorney Tungate’s services on this matter was \$345.00-395.00; that the rate is the customary rate which the Buchalter firm charges to each of its clients for services; and that their firm sets the rates to be competitive with the other major law firms in the Southern and Northern California areas. (Tungate Decl., ¶ 2.) Upon review of the billing invoices, it appears that Attorney Tungate’s hourly rate was \$345 in 2024, \$385 for the January 2025 invoice, and \$395 for 2025. The Court finds that the requested rates for Attorneys Scott and Tungate are reasonable and commensurate with the prevailing rates charged by attorneys for comparable legal services within the community of Orange County. Based on the foregoing, the Court GRANTS attorneys’ fees in the amount of \$21,757. <u>Fees for Fee Motion</u> “ ‘Prevailing parties are compensated for hours reasonably spent on fee-related issues. (<i>Meister v.</i>
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		Regents of Univ. of Calif. (1998) 67 Cal.App.4th 437, 455.) Plaintiff requests an additional \$987.50 for 1.5 hours to prepare and draft the instant fee motion and supporting declaration, and 1 hour to attend the hearing on the motion, at \$395 per hour. (Tungate Decl., ¶ 15.) The amount of time is reasonably expended and anticipated. The Court GRANTS an additional \$987.50 for the instant fee motion. The Court GRANTS Plaintiff's motion for attorneys' fees in the total amount of \$22,744.50 (\$21,757 + \$987.50). Plaintiff failed to comply with California Rules of Court, rule 3.1110(f)(4) which requires that unless submitted by a self-represented party, electronic exhibits include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit. The court cautions counsel to fully comply with the rules of court. Plaintiff to give notice.
114	Zoomlion Heavy Industry Science & Technology Co, Ltd v. Guoqiang 2025-01511982	APPLICATION FOR RIGHT TO ATTACH ORDER/WRIT OF ATTACHMENT - DENIED Plaintiffs Zoomlion Heavy Industry Science and Technology Co., Ltd. and Zoomlion Financial Leasing (Beijing) Co., Ltd. ("Plaintiffs") apply for an order granting them a right to attach order and writs of attachment against defendant Fan Guoqiang ("Defendant"). “ ‘Before an attachment order is issued, the court must find all of the following: (1) the claim upon which the attachment is based is one upon which an attachment may be issued; (2) the applicant has established “the probable validity” of the claim upon which the attachment is based; (3) the attachment is not sought for a purpose other than the recovery upon which the request for attachment is based; and (4) the amount to be secured by the attachment is greater than zero. [Citation.] The plaintiff has the burden of establishing the probable validity of the

		claim upon which the attachment is based.’ [Citations.] Probable validity means ‘it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.’” (Park v. NMSI, Inc. (2023) 96 Cal.App.5th 346, 354.) “The application shall be supported by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (Code Civ. Proc., § 484.030.) “[A]n attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees.” (Code Civ. Proc., § 483.010(a).) Plaintiffs seek to enforce four foreign judgments under California’s Uniform Foreign-Country Money Judgments Recognition Act (UFCMJRA), codified in Code of Civil Procedure sections 1713 through 1724. Plaintiffs argue they have satisfied their burden by submitting certified copies of the judgments and Defendant cannot carry his burden to defeat recognition. They contend that they have therefore demonstrated the probable validity of their claims. Defendant argues Plaintiffs’ showing of probable validity fails because the Chinese court system in which the foreign judgments were rendered and the particular proceedings were biased and lacked due process. Because the UFCMJRA precludes recognition for judgments rendered under a judicial system that does not provide impartial tribunals or procedures compatible with due process, Plaintiffs have not established that the foreign judgments are likely to be recognized by this Court. Defendant further argues that the underlying foreign court proceedings lacked fundamental fairness in that the judgments were predetermined, recognized standards were disregarded, and the proceedings were biased in favor of the government-owned Plaintiffs.
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		The UFCMJRA applies to a foreign-country judgment to the extent that the judgment both grants or denies recovery of a sum of money and, under the law of the foreign country where rendered, is final, conclusive, and enforceable. (Code Civ. Proc., § 1715(a).) The UFCMJRA does not apply to a foreign-country judgment to the extent that the judgment is a fine or other penalty. (Code Civ. Proc., § 1715.) “A party seeking recognition of a foreign-country judgment has the burden of establishing that the foreign-country judgment is entitled to recognition under this chapter.” (Code Civ. Proc., § 1715(c).) While Plaintiffs assert that they have satisfied their initial burden by submitting certified copies of the judgments, the only evidence filed in support of their Application is the Declaration of Minda Huang (“Huang Declaration”). The foreign judgments are not attached thereto. While they are attached to the Complaint, a complaint may support a request for attachment in lieu of or in addition to an affidavit only when it is verified. (Code Civ. Proc., § 482.040.) Plaintiffs’ Complaint is not verified. Moreover, even if the Complaint were verified, the foreign judgments attached thereto do not appear to be admissible evidence. The foreign judgments have been translated from Chinese to English. Cal. Rules of Court, rule 3.1110(g) provides: “Exhibits written in a foreign language must be accompanied by an English translation, certified under oath by a qualified interpreter.” Here, while the Complaint’s exhibits include Certificates of Translation from Chinese to English, the Certificates are executed by J.W.P. van Buren, a representative of JK Translate. It appears that J.W.P. van Buren is not the translator who performed the translation and instead is only a representative of the company JK Translate. However, the interpreter must personally certify the translations under oath. Further, even if J.W.P. van Burden was the interpreter, there is no evidence as to his qualifications and therefore no evidence that the translations attached to the Complaint were done by a qualified interpreter.
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		In addition, Plaintiffs have not set forth any evidence showing that the foreign judgments do not include a penalty. Further, the Complaint itself suggests that penalties are included in at least three of the four foreign judgments. Exhibit C of the Complaint states that upon default, the lessor may charge the lessee for penalties, including a penalty of 8% of the total rent principal. The judgment goes on to impose penalty interest against Defendant. Exhibit D of the Complaint also reflects “penalty interest” and Exhibit B reflects “a penalty of RMB1,239,580.6.” Thus, even if the translations were admissible, the Court would not be able to determine whether the foreign judgments include penalties such that the UFCMJRA would not apply. Further, the amounts claimed by Plaintiffs in the Huang Declaration do not much up with the amounts set forth in the Complaint and its exhibits. In the Huang Declaration. Plaintiffs claim that the amounts due are as follows: (1) Foreign Judgment #1: RMB 15,581,217.60, together with interest accruing at the rate of 0.05% per day until paid; (2) Foreign Judgment #2: RMB 9,745,871.57, together with interest accruing at the rate of 0.0175% per day until paid; (3) Foreign Judgment #3: RMB 12,647,234.14, together with interest accruing at the rate of 0.0175% per day until paid; and (4) Foreign Judgment #4: RMB 11,921,336.95, together with interest accruing at the rate of 0.0175% per day until paid. The Complaint’s exhibits indicate that the amounts are as follows: Judgment #1, attached as Exhibit A, states that Defendant shall pay RMB 388,647.99 per month over a period of 24 months, which reflects a total of RMB 9,327,551.76. Judgment #2, attached as Exhibit B, states that Defendant shall pay the outstanding amount of RMB 8,439,227.98 with a penalty of RMB 1,239,580.60. Judgment #3, attached as Exhibit C, states that Defendant shall pay RMB 8,145,163.14 and penalty interest of RMB 4,400,000.
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		And lastly, Judgment #4, attached as Exhibit D, states that Defendant shall pay RMB 7,823,594.95 and penalty interest of RMB 4,000,000. Plaintiffs offer no calculations to explain the differences between the numbers in the foreign judgments attached to the Complaint and those set forth in their supporting declaration. Based on all the above, the Court finds that Plaintiffs have failed to carry their initial burden. Therefore, the Application is DENIED. Plaintiffs to give notice.
115	Beasley v. Soheil 2024-01411587	MOTION TO BE RELIEVED AS COUNSEL OF RECORD - GRANTED Samuel Ogbogu (“Moving Attorney”) moves to be relieved as counsel of record for plaintiff Yoshira Beasley. The motion is unopposed and Moving Attorney has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16. All other requirements are satisfied. Thus, the motion is GRANTED. The moving attorney is directed to submit a proposed order (form MC-053) for the court’s signature. The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) Moving Attorney to give notice.
116	Robicheaux v Rowshan 2022-01261647	MOTION FOR SUMMARY ADJUDICATION - DENIED Plaintiff/Cross-Defendant Grant Robicheaux moves for summary adjudication as to the first cause of action for fraud brought by Cross-Complainants Dr. Kasra Rowshan and Newport Care, second cause of action for negligent misrepresentation brought by Rowshan and Newport Care, fifth cause of action for breach of fiduciary duty brought by Rowshan and Newport Care, and sixth cause of action for breach of fiduciary duty brought by Rowshan and Top Surgical, as asserted in the second amended cross-complaint.

		Defendants/Cross-Complainants Kasra Rowshan, Newport Care Medical Group, Inc., Newport Care MSO, LLC, Linden Properties, LLC, Old Newport Group, LLC, and Top Surgical, LLC (collectively Rowshan) oppose the motion. I. INITIAL MATTERS Before addressing whether there are triable issues of material facts for the issues presented, the Court will address some preliminary matters. First, the Court notes that Robicheaux’s operative answer is now the first amended answer to second amended cross-complaint. (ROA 1039.) Even so, the Court notes that, absent a showing for prejudice and upon adequate notice and opportunity to respond, affirmative defenses may be asserted for the first time in a motion for summary adjudication without amending the answer. (<i>Atkins v. St. Cecilia Catholic School</i> (2023) 90 Cal.App.5th 1328, 1341.) Second, both parties’ requests for judicial notice are GRANTED. Rowshan’s requests for judicial notice in opposition to the motion for summary adjudication are GRANTED. These documents are judicially noticeable pursuant to Evidence Code section 452 as “records of any court of this state.” Robicheaux’s requests for judicial notice in support of the motion for summary adjudication are GRANTED. These documents are judicially noticeable pursuant to Evidence Code section 452 as “records of any court of this state.” Third, Rowshan contends that the Court impliedly barred any additional motions for summary judgment. The Court did not impliedly bar motions for summary judgment when it ordered discovery closed. In <i>re Marriage of Binette</i> (2018) 24 Cal.App.5th 1119, 1130-1131, cited by Rowshan, simply stands for the proposition that the Court and the parties have the power to agree to procedural limitations and deadlines.
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		II. MERITS OF THE MOTION FOR SUMMARY ADJUDICATION Robicheaux moves for summary adjudication as to the first cause of action for fraud brought by Rowshan and Newport Care, second cause of action for negligent misrepresentation brought by Rowshan and Newport Care, fifth cause of action for breach of fiduciary duty brought by Rowshan and Newport Care, and sixth cause of action for breach of fiduciary duty brought by Rowshan and Top Surgical, as asserted in the second amended cross-complaint. Rowshan opposes the motion. The motion for summary adjudication presents five issues. Issue 1: There is no dispute of fact and as a matter of law, Cross-Complainants KASRA ROWSHAN, M.D. and NEWPORT CARE MEDICAL GROUP, INC. expressly waived and voluntarily relinquished (i.e., released) the claim of fraud as asserted in the first cause of action by executing and voluntarily agreeing to the mutual release language found in the Repurchase Agreement attached to Cross-Complainants' Second Amended Cross-Complaint as Exhibit B, ¶ 4.2. Issue 2: There is no dispute of fact and as a matter of law, Cross-Complainants KASRA ROWSHAN, M.D. and NEWPORT CARE MEDICAL GROUP, INC. expressly waived and voluntarily relinquished (i.e., released) the claim of negligent misrepresentation as asserted in the second cause of action by executing and voluntarily agreeing to the mutual release language found in the Repurchase Agreement attached to Cross-Complainants' Second Amended Cross-Complaint as Exhibit B, ¶ 4.2. Issue 3: There is no dispute of fact and as a matter of law, Cross-Complainants KASRA ROWSHAN, M.D. and NEWPORT CARE MEDICAL GROUP, INC. expressly waived and voluntarily relinquished (i.e., released) the claim of breach of fiduciary duty as asserted in the fifth cause of action by executing and voluntarily agreeing to the mutual release language found in the Repurchase Agreement attached to
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		Cross-Complainants' Second Amended Cross-Complaint as Exhibit B, ¶ 4.2. Issue 4: There is no dispute of fact and as a matter of law, Cross-Complainant KASRA ROWSHAN, M.D. cannot state a cause of action for breach of fiduciary duty as asserted in the fifth cause of action, because as a matter of law, the action is derivative and Cross-Complainant KASRA ROWSHAN, M.D. has no standing to assert this cause of action. Issue 5: There is no dispute of fact and as a matter of law, Cross-Complainant KASRA ROWSHAN, M.D. cannot state a cause of action for breach of fiduciary duty as asserted in the sixth cause of action, because as a matter of law, the action is derivative and Cross-Complainant KASRA ROWSHAN, M.D. has no standing to assert this cause of action As evident from the issues presented, this motion turns on two questions: (1) did Rowshan waive the right to bring the causes of action for fraud, negligent misrepresentation, and breach of fiduciary duty [issues 1, 2, and 3 as presented in the separate statement] and (2) does Rowshan have standing to assert the fifth and sixth causes of action for breach of fiduciary duty [issues 4 and 5 as presented in the separate statement]? 1. Did Rowshan waive the right to bring the causes of action for fraud, negligent misrepresentation, and breach of fiduciary duty? First, the Court must determine whether Rowshan and Newport Care waived their causes of action for fraud, negligent misrepresentation, and/or breach of fiduciary duty pursuant to the release contained in the Repurchase Agreement. The affirmative defense at issue is waiver. "Case law is clear that [w]aiver is the intentional relinquishment of a known right after knowledge of the facts." (Waller v. Truck Ins. Exchange, Inc. (1995) 11 Cal.4th 1, 31.) Waiver "depends upon the intention of one party only" and does not require any act or conduct by the other party." (Old Republic Ins. Co. v. FSR Brokerage, Inc. (2000) 80 Cal.App.4th
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		666, 678.) “Thus, [t]he pivotal issue in a claim of waiver is the intention of the party who allegedly relinquished the known legal right.” (Ibid.) “The burden ... is on the party claiming a waiver of a right to prove it by clear and convincing evidence that does not leave the matter to speculation, and doubtful cases will be decided against a waiver.” (Waller v. Truck Ins. Exchange, Inc. (1995) 11 Cal.4th 1, 31.) “Whether there has been a waiver is usually regarded as a question of fact to be determined by the jury, or by the trial court if there is no jury.” (Old Republic Ins. Co. v. FSR Brokerage, Inc. (2000) 80 Cal.App.4th 666, 679.) Under the Repurchase Agreement, Cross-Defendant/Plaintiff Grant Robicheaux, MD is the “Seller,” Newport Care Medical Group, Inc. is the “Company,” and Kasra Rowshan, M.D. is referred to “Dr. Kasra Rowshan, MD.” The Repurchase Agreement contains the following section regarding release under Article 4 of the Agreement: “4.1 In consideration of the terms and conditions of this Agreement, Seller, on his own behalf and on behalf of his past, present and future affiliates, heirs, spouses, trustees, beneficiaries, executors, representatives, successors, assigns, agents and attorneys claiming by or through Seller (the "Seller Releasing Parties"), shall and does hereby and forever fully, finally and forever generally remise, release, waive and discharge the Company and each of its current or former officers, directors, shareholders, members, managers, investors, partners, employees, servants, agents, representatives, attorneys, partnerships, trustees, predecessors, successors, assigns, affiliates, insurers, parent corporations, and/or subsidiaries, and/or any other entity or company or partnership operated, affiliated with, controlled by, or under common control with any one of the foregoing (the "Company Released Parties"), from any and all known or unknown, suspected or unsuspected, whether or not
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		concealed or hidden, claims, rights, omissions, debts, liabilities, obligations, sums of money, accounts, covenants, contracts, controversies, agreements, promises, damages, fees, expenses, judgments, executions, indemnification rights, demands, actions and causes of action, at law or in equity which any Seller Releasing Party ever had or held, now has or holds, or hereafter can, shall, or may have or hold against the Company and the Company Released Parties, or any one of them, based on, arising out of, relating to or in any way connected with any occurrences, transactions, events, acts, or omissions of any kind whatsoever that relate to Company from the beginning of time through the Effective Date except for medical malpractice claims or regulatory billing or compliance claims not covered by insurance or other claims that cannot be released as a matter of law. Notwithstanding anything to the contrary in this Agreement, none of the releases under this Agreement shall impact any of the Parties rights or obligations under that certain Letter of Intent, dated as of the date hereof, by and among the Parties hereto or any other business entities that Seller and Kasra Rowshan, MD co-own.” “4.2 In consideration of the terms and conditions of this Agreement, the Company, the Company Released Parties and any person who may claim through such persons or entities (collectively, the "Company Releasing Parties") shall and does hereby and forever fully, finally and forever generally remise, release, waive and discharge Seller and the Seller Releasing Parties, and each of them, from any and all known or unknown, suspected or unsuspected, whether or not concealed or hidden, claims, rights, omissions, debts, liabilities, obligations, sums of money, accounts, covenants, contracts, controversies, agreements, promises, damages, fees, expenses, judgments, executions, indemnification rights, demands, actions and causes of action, at law or in equity, which any Company Releasing Parties ever had or held, now has or holds, or hereafter can, shall, or may have or hold against Seller and the Seller Releasing Parties, or any one of them, based on, arising out of, relating to or in any
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		way connected with any occurrences, transactions, events, acts, or omissions of any kind whatsoever that relate to Company from the beginning of time through the Effective Date, except for medical malpractice claims or regulatory billing or compliance claims not covered by insurance or other claims that cannot be released as a matter of law.” (Emphasis added.) “4.7 Notwithstanding anything to the contrary set forth in this Agreement, the Parties acknowledge and agree that the releases set forth in this ARTICLE 4 do not extend to, include or restrict or limit in any way, and each of the Seller Releasing Parties and the Company Releasing Parties hereby reserves such Party's rights, if any, and the right of the other Parties, if any, to pursue any and all claims that such Party may now or in the future have solely on account of (a) rights of such Party, if any, under this Agreement, (b) medical malpractice claims not covered by insurance, (c) obligations under this Agreement, and (d) and any claim which, as a matter of applicable law, cannot be released.” The Repurchase Agreement also contains the following section regarding a mutual waiver: “6.6 Mutual Waiver. To the extent the terms and conditions of the Company’s purchase of the Shares hereunder are inconsistent with the terms and conditions of any agreement between the Company and Seller, the Parties hereby waive any rights they may have under those inconsistent provisions of such agreement.” Importantly, the Effective Date of the Repurchase Agreement is 02/01/2021. Consistent with the Court’s previous order on Cross-Complainants/Defendants MSJ, whether the allegations in the Cross-Complaint relate to the letter of intent such that they are excluded from the Release Agreement is a triable issue of fact. (See ROA 685.) This conclusion is based on the section of the release that states that “Notwithstanding anything to the contrary in this Agreement, none of the releases under this Agreement shall impact any
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		of the Parties rights or obligations under that certain Letter of intent, dated as of the date hereof, by and among the Parties hereto or any other business entities that Seller and Kasra Rowshan, MD co-own.” Moreover, many of the wrongful acts alleged in the Cross-Complaint occurred after the Release Agreement was signed. Thus, even if the Court were to conclude (which it does not) that the Release Agreement barred recovery for conduct that occurred before 02/01/2021, the operative Cross-Complaint alleges grounds for these causes of action for instances that occurred after 02/01/2021. (See e.g., Second Amended Cross-Complaint, ¶¶ 110-117.) The release expressly states that only the recovery for the wrongful conduct “arising out of, relating to or in any way connected with any occurrences, transactions, events, acts, or omissions of any kind whatsoever that relate to Company from the beginning of time through the Effective Date” is waived. Likewise, whether Cross-Defendant breached the “covenant not to sue” section of the Repurchase Agreement and the impact of Cross-Defendant’s initiated this lawsuit is also a triable issue that prevents summary judgment. The “covenant not to sue” section is as follows: “4.5 A "covenant not to sue" is a legal term that means the Parties promise not to file or initiate a lawsuit in court or other legal proceeding. It is different from the Complete and General Release of claims contained in the other sections of this ARTICLE 4, above. Besides waiving and releasing the claims covered by this ARTICLE 4, above, the Parties represent and warrant that he, she, it, and they have not filed, and agree that he, she, it, and they will not file, or cause to be filed, any judicial complaint or lawsuit involving any claims he, it, and they have released in this ARTICLE 4, and the Parties agree to withdraw any judicial complaints, lawsuit, arbitration or administrative actions he, she, it, and/or they have filed, or that were filed on their behalf, prior to the Effective Date of this Agreement. The Parties agree and acknowledge that, if a Party sues the other Party or any other Released Parties in
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		violation of this Agreement, then that Party shall pay all legal expenses, including reasonable attorneys' fees and costs, incurred by any Released Party in defending against such suit or action. Notwithstanding this covenant not to sue, the Parties may bring a claim to enforce this Agreement. Each Party further agrees that it shall not, nor shall any affiliate of such Party (a) institute a lawsuit or other legal, administrative or other proceeding based upon, arising out of, or relating to any of the released claims; (b) participate, assist, or cooperate in any such proceeding; or (c) encourage, assist and/or solicit any third party to institute any such proceeding.” Last, the Repurchase Agreement is also ambiguous as to whether the Release applies to claims that Dr. Rowshan, as an individual, holds against Dr. Robicheaux rather than as an officer or agent of the Company. Given the above, the motion for summary judgment as to the first cause of action for fraud, second cause of action for negligent misrepresentation, and third cause of action breach of fiduciary duty based on the argument that the Repurchase Agreement waived Cross-Complainants right to hold Cross-Defendant liable or releases Cross-Defendant from liability for these causes of action is DENIED. 2. Does Rowshan have Standing to assert the fifth and sixth causes of action for breach of fiduciary duty? “[I]t is settled that one who has suffered injury both as an individual owner of a corporate entity and in an individual capacity is entitled to pursue remedies in both capacities.” [Citation.] The line between personal and derivative claims is drawn according to the injury inflicted: “The claims are derivative where the injury alleged is one inflicted on the corporate entity or on the ‘whole body of its stock.’ [Citation.] A personal claim, in contrast, asserts a right against the corporation which the shareholder possesses as an individual apart from the corporate entity: ‘If the injury is not incidental to an injury to the corporation, an individual cause of action exists.’ ”
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		[Citation.] “In determining whether an individual action as opposed to a derivative action lies, a court looks at ‘the gravamen of the wrong alleged in the pleadings.’” [Citation.] (Holistic Supplements, L.L.C. v. Stark (2021) 61 Cal.App.5th 530, 542.) Cross-Defendant cites to Schrage v. Schrage (2021) 69 Cal.App.5th 126, which states: “[W]here conduct, including mismanagement by corporate officers, causes damage to the corporation, it is the entity that must bring suit; the individual shareholder may not bring an action for indirect personal losses (i.e., decrease in stock value) sustained as a result of the overall harm to the entity.” (Bader v. Anderson, supra, 179 Cal.App.4th at p. 788, 101 Cal.Rptr.3d 821; see Heshejin v. Rostami (2020) 54 Cal.App.5th 984, 994, fn. 10, 268 Cal.Rptr.3d 836 [“ ‘a shareholder cannot bring a direct action for damages against management on the theory their alleged wrongdoing decreased the value of his or her stock (e.g., by reducing corporate assets and net worth)’ ”]; instead, the “ ‘corporation itself must bring such an action, or a derivative suit may be brought on the corporation's behalf’ ”]; Oakland Raiders v. National Football League (2005) 131 Cal.App.4th 621, 651, 32 Cal.Rptr.3d 266 [plaintiff's breach of fiduciary duty claim for corporate mismanagement and diverting corporate assets was derivative]; PacLink Communications Internat., Inc. v. Superior Court (2001) 90 Cal.App.4th 958, 964, 109 Cal.Rptr.2d 436 [minority members' fraudulent transfer claim was derivative where the “injury was essentially a diminution in the value of their membership interest in the [limited liability company] occasioned by the loss of the company's assets”]; Nelson, supra, 72 Cal.App.4th at pp. 125-126, 84 Cal.Rptr.2d 753 [minority shareholder's breach of fiduciary duty claim alleging the other shareholder of the corporation negligently managed the business was derivative]; Marsh et al., Marsh's Cal. Corporation Law (2021 supp.) Derivative Action, § 15.11[A][1] [“The clearest cases [of derivative actions] are those involving situations where the alleged wrongful actions of the defendants
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		have reduced the corporate assets and net worth.”.)” (Id., 153.) “The stockholder’s individual suit, on the other hand, is a suit to enforce a right against the corporation which the stockholder possesses as an individual.” (Schrage v. Schrage (2021) 69 Cal.App.5th 126, 150.) “For example, ‘[i]f the injury is one to the plaintiff as a stockholder and to him individually, and not to the corporation, as where the action is based on a contract to which he is a party, or on a right belonging severally to him, or on a fraud affecting him directly, it is an individual action.’” (Ibid.) “The individual wrong necessary to support a suit by a shareholder need not be unique to that plaintiff.” (Ibid.) “The same injury may affect a substantial number of shareholders.” (Ibid.) “If the injury is not incidental to an injury to the corporation, an individual cause of action exists.” (Ibid.) “[A] derivative suit is one in which the shareholder seeks redress of the wrong to the corporation.” (Bader v. Anderson (2009) 179 Cal.App.4th 775, 793.) “Thus, an action ‘is derivative, i.e., in the corporate right, if the gravamen of the complaint is injury to the corporation, or to the whole body of its stock and property without any severance or distribution among individual holders, or it seeks to recover assets for the corporation or to prevent the dissipation of its assets.’” (Bader v. Anderson (2009) 179 Cal.App.4th 775, 793 [citing Jones v. H.F. Ahmanson & Co. (1969) 1 Cal.3d 93, 106].) “On the other hand, a direct or individual suit by a stockholder ‘is a suit to enforce a [] right against the corporation which the stockholder possesses as an individual.’” (Bader v. Anderson (2009) 179 Cal.App.4th 775, 793 [citing Jones v. H.F. Ahmanson & Co. (1969) 1 Cal.3d 93, 107].) “For example, ‘[i]f the injury is one to the plaintiff as a stockholder and to him individually, and not to the corporation, as where the action is based on a contract to which he is a party, or on a right belonging severally to him, or on a fraud affecting him directly, it is an individual action.’” (Schrage v. Schrage (2021) 69 Cal.App.5th 126, 150, reh'g denied
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		(Oct. 15, 2021), review denied (Jan. 5, 2022).) “The individual wrong necessary to support a suit by a shareholder need not be unique to that plaintiff.” (Ibid.) “The same injury may affect a substantial number of shareholders.” (Ibid.) “If the injury is not incidental to an injury to the corporation, an individual cause of action exists.” (Ibid.) “A direct (as opposed to a derivative) action is maintainable ‘only if the damages [are] not incidental to an injury to the corporation.’” (Bader v. Anderson (2009) 179 Cal.App.4th 775, 793 [citing Nelson v. Anderson, supra, 72 Cal.App.4th at p. 124].) “And the two actions are mutually exclusive: i.e., the right of action and recovery belongs to either the shareholders (direct action) or to the corporation (derivative action).” (Id., citations omitted.) “An individual cause of action exists only if damages to the shareholders were not incidental to damages to the corporation.” (Schuster v. Gardner (2005) 127 Cal.App.4th 305, 313.) “Examples of direct shareholder actions include suits brought to compel the declaration of a dividend, or the payment of lawfully declared or mandatory dividends, or to enjoin a threatened ultra vires act or enforce shareholder voting rights.” (Ibid.) Regarding the fifth cause of action for breach of fiduciary duty, the Court finds that paragraph 153 contains a number of breaches that, as alleged, appear to injury Dr. Rowshan as an individual and are not incidental to the injury to Newport Care. For example, a jury could find the impact of Dr. Robicheaux allegedly “[k]nowingly possessing and/or using illicit substances such as cocaine, methamphetamine, and GHB, thereby bringing Dr. Rowshan and Newport Care indirectly into disrepute” injures Dr. Rowshan as an individual. Likewise, the allegation that Dr. Robicheaux “[f]ailed to pay Dr. Rowshan approximately \$75,000 for his half of shares in Newport Beach Surgery Center” appears (on the face of the Cross-Complaint) to be an agreement between Dr. Rowshan and Dr. Robicheaux wherein Dr. Robicheaux agreed to pay Dr. Rowshan approximately \$75,000 for his half of shares in
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		Newport Beach Surgery Center – as alleged, such money appears to be owed to Dr. Rowshan, not Newport Care. The sixth cause of action alleges similar misconduct in relation to a breach of fiduciary duty. For example, paragraph 159 alleges that Dr. Robicheaux breached his fiduciary duty to Dr. Rowshan by “knowingly possessing and/or using illicit substances such as cocaine, methamphetamine and GHB.” As such, the Court finds that Dr. Rowshan has standing to assert these causes of action against Dr. Robicheaux. Whether these instances occurred and whether these instances constitute a breach of a fiduciary duty are not at issue in this motion. The Motion is DENIED as to the standing argument. In sum, the Motion for Summary adjudication is DENIED in its entirety. Cross-Complainants to give notice.
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